

Associate Professor (Dr.) Yoni Nazarathy
Forestdale,
QLD, Australia.

23 Aug, 2024

Committee Secretary
Senate Legal and Constitutional Affairs Legislation Committee

Subject: Submission to the Senate Inquiry into the Commission of Inquiry into Antisemitism at Australian Universities Bill 2024 (No. 2)

Dear Committee Secretary,

Thank you for taking the time to consider my submission. I would like to share some of my experiences at The University of Queensland (UQ) from the past period. Notably, I would like to highlight the university's senior management's inaction in deterring and mitigating hate events on campus. I hope that my account of some of the events that happened at UQ can shed a light on a greater national problem that requires an immediate bipartisan response. As a first example, the left display of Figure 1 shows one of many hate events that happened at UQ and was dismissed by UQ's senior leadership as minor. Anyone who understands antisemitism would realize the severity of this poster and would expect the university to take action.



Figure 1: Left: A highly antisymmetric display that appeared on the southeast corner of the UQ great court at around 11am on May 9, 2024. I alerted senior leadership to this display. Yet beyond removal of the display by security, to the best of my knowledge this event was not investigated (even though CCTV cameras are present), no disciplinary action was taken, and this hate event, as many others was not addressed in VC messaging to students/staff. **Right:** A response by a UQ middle management professor to another kind of hate event that took place in a different context. This is an example of positive swift response by (middle) management, in alignment with the broad UQ and Australian values. **Why is the antisymmetric act of hate not handled while the anti-LGBTQI+ event handled?**

Background and Personal Sentiment

Let me state that I am a UQ Associate Professor of statistics focusing in recent years on artificial intelligence (AI). I have been at UQ for the past 12 years where I started as lecturer and grew my career. In the last couple of years my UQ employment has been on a part-time basis since I spend some of my time on my co-directed private AI consultancy. In general, I love the staff and student community at UQ. The university has provided me with the privilege of teaching mathematics and statistics to over 2000 students in total, the pleasure of guiding multiple PhD students on their research and career development, the joy of carrying out cutting edge research myself, and the ability to engage with industry and other members of the broader Australian community. Direct Australian government funding through the ARC (Australian Research Council) has funded some of my research at UQ through several competitive grants. These were awarded to me, also since UQ accommodates an excellent research environment.

Nevertheless, as much as I have felt at home at UQ, the university management actions (as well as inactions) which I am about to describe have put me at a dilemma about the future of my employment at this institution. While on the one hand it is my academic “home”, on the other hand, I now feel that it is an institution with senior leadership that does not take enough action to protect students and staff from hate events. Even worse, I feel that through mismanagement of the recent crisis, UQ management has fostered an atmosphere which implicitly supports racism, and in particular antisemitism. I have even gone as far as publicly stating that UQ management is complicit with racism and antisemitism, and I stand by these statements.

For a bit more background, I'll state that I am an Israeli ex-pat. I was born in Israel and during some of my years in Israel, as many citizens do, I served as a combat soldier in the Israeli army and army reserve. I have family in Israel, and I have many Jewish, Arab, and Iranian friends that still live in that region. Hence like many, I am gravely concerned about the regional war taking place in the middle east. I am concerned and feel pain for the many lives lost by Gazan civilians, the lives of Israeli hostages, and the many Israelis murdered on Oct 7, 2023, as well as Israeli soldiers that continue to die as part of this tough war.

As a person that has witnessed two “Intifadas” firsthand, I am grateful to have Australia as a home. In Israel I have witnessed Hamas led bus bombings, and as a soldier I have witnessed some of the hardships that Palestinians undergo due to their lack of country, lack of leadership, and the Israeli occupation. I have also witnessed genuine attempts for peace in the region both from the Israeli and the Palestinian side. This was especially evident during the 1990's and early 2000's. I think that since then, the situation has deteriorated gravely. Solving this problem is not something that the Australian Senate can do. But what we can do on our side of the world is to make sure that those that live here in Australia at least feel safe, independently of their ethnic background. We can

also make sure that the ongoing Palestinian-Israeli conflict does not serve as a polarization tool even though different communities feel differently about the matter. This certainly does not mean suppression of free speech, but it does mean that we gauge the difference between free speech and hate speech very carefully.

As an Australian, I cherish the safe multi-cultural atmosphere that our country provides. I cherish the freedom of speech that our culture supports, including the freedom of religion, and in the university context the freedom of research. My professional life at UQ has also been a celebration of such multi-culturalism where in addition to working with those born in Australia, I regularly work with ex-pats from Iran, India, China, Europe, Israel, as well as many other locations. One such collaboration is even with a young Palestinian ex-pat researcher that I mentored, both as a course coordinator where they were tutoring under my supervision, and as a collaborating researcher on a project. To date, I have appreciated UQ's atmosphere for fostering such collaborations. This has gone hand in hand with a strong emphasis for acceptance and inclusion of LGBTQI+ communities, deep respect to our first nation's Aboriginal and Torres Strait Islander cultures, and a strong drive towards gender equality.

Before I highlight my grave concerns about UQ's senior management handling of hate events on campus, let me first share what I consider as an example of very positive and decisive action within the institution. In late August 2023, there was a vandalism event where LGBTQI+ inclusivity posters were torn down from several hallway locations. This was mostly at the School of Mathematics and Physics (SMP) at UQ, of which I am a staff member. In line with UQ's values, the head of school's response was to immediately message the whole school staff and (research) student body with a strong and clear message as that appearing in the right display of Figure 1.

As a UQ and SMP staff member, I felt that such a strong message conveyed the importance of respect and inclusivity on campus. It highlighted the fact that there is no room for hate at UQ. Then, 5 weeks later, when the October 7 Hamas attack happened and war broke out, further positive messaging from such middle management continued to propagate within my circles at UQ. Yet this was a localized response by a head of school. In contrast, at the broader university level, as I shall now describe, the level of messaging has been completely different. The Vice Chancellor (VC), Prof. Debbie Terrie, while being responsive to e-mails from staff and community, has in my view failed to address the difficult problems that developed. She and her leadership team failed to take decisive action against hate events. And worst of all, by giving into demands of hateful protestors, Prof. Terrie has opened the door for further disorder and pain on campus which we are witnessing every day.

The nature of events at the UQ Campus, UQ's response, and "Free Speech"

I have kept a log of key harassment, vilification, vandalism, and violence events that took place on campus and that I am aware of. See <https://yoninazarathy.com/uq-2024-hate-events/>. While that log is informal, I hope that a judicial inquiry into this matter can consider such events, fill in the gaps, and draw conclusions for the education system.

A key problem that I have seen at UQ is the university's inability to investigate events and take disciplinary action. For example, a smashing of a glass wall in the Hawken engineering building (May 9, 2024) was as far as I know not investigated (see left of Figure 2). Cases of wrestling (fighting) over flags in multiple instances were not investigated either. Driving a car at midnight through the great court (not an area for driving) was not investigated (note that there were even tents there at the time and this posed a greater hazard). Displaying a terrorist organization flag (PFLP) was not investigated. And many more.

Certainly, in all these cases disciplinary action was not taken. The same goes for defamatory material as in Figure 2 (centre and right), as well as for the case of hurtful calls such as "out out Israel out", or "intifada". In all these cases I believe that the university's lack of ability to draw red lines has signalled to protesters that free speech extends to "any form of speech including hate speech". Then in the few cases where the university did involve police, the university, led by Prof. Terrie, claimed that the events were singular and that "protests and activism is peaceful otherwise". Such was for example the case where an Israeli ex-pat's office was urinated in and the university claimed no relationship to protests.



Figure 2: Left: A glass wall smashed during an anti-Israel protest in the Hawken engineering building on May 9, 2024. As far as I know, no disciplinary action was taken. **Centre:** A foul sign that was put up and stayed up for multiple weeks without university intervention. **Right:** Defamatory content on social media put up by the students4palestine_uq group. As far as I know, the university has not acted over such content.

Other content, which may appear "less hurtful" is also present at much larger volumes. In fact, it has recently become evident that a UQ employee is a co-coordinator of the "Justice for Palestine Magan-djin (Brisbane)" group. This is Remah Naji, employed at UQ under the name of Remah Ismail, whom is now the Green's federal MP candidate for

Moreton. Some of the content associated with that group, while potentially not directly antisemitic, is certainly inflammatory in nature. Often UQ has allowed such content to be posted up at any location, unchecked. See for example Figure 3.

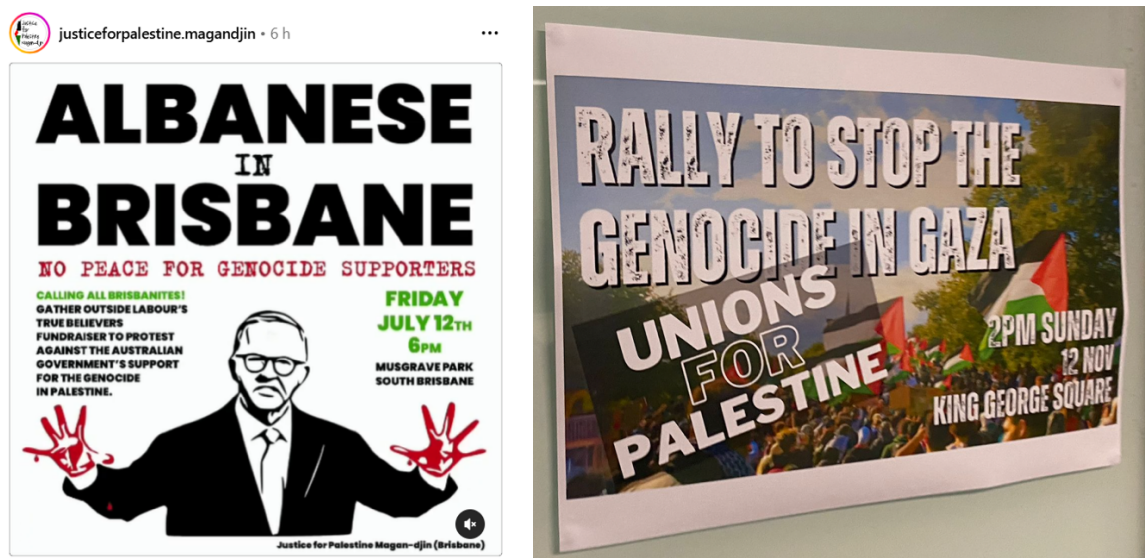


Figure 3: Left: Inflammatory content claiming that our PM is a genocide supporter from the Justice for Palestine Magan-dijn group. **Right:** A typical poster hung up on campus on a wall that is not designated for that purpose. The rally discussed is also organized by the Justice for Palestine Magan-dijn group, coordinated by a UQ employee.

While I personally find such content hurtful, putting my feelings aside, I think that such content (as in Figure 3) can be tolerated as it constitutes students' and staff members' ability for free speech. However, I think that UQ should manage such content in the strictest possible way and only allow it on designated spots (of which many should be constructed). Further, such content should never make its way into lectures, course websites (learning management systems) and when such cases occur, disciplinary action needs to be taken. Indeed, there are many reports of interruptions to lectures with political content, and in particular anti-Israel propaganda.

I also think that when content is considered, institutions (perhaps guided by government) should consider relationships to terrorism. For example, while the Justice for Palestine Magan-dijn content on its own is not related to terrorism, a more detailed look into subtle messaging of that group certainly associates with terrorism (often with the subtext "Palestinian resistance"). See for example Figure 4 (top left) where an activist wears a Hamas t-shirt!

In the same go, while political activity on campuses is expected and generally positive for society, activity related to terrorism should obviously be outlawed and handled in the strictest manner. This has not been the case at UQ where it appears that university management was ill-equipped to understand the gravity of the situation. Calls for terrorism by students were made, as attested in a video which appeared in Courier mail on May 12 (Figure 4 bottom right).

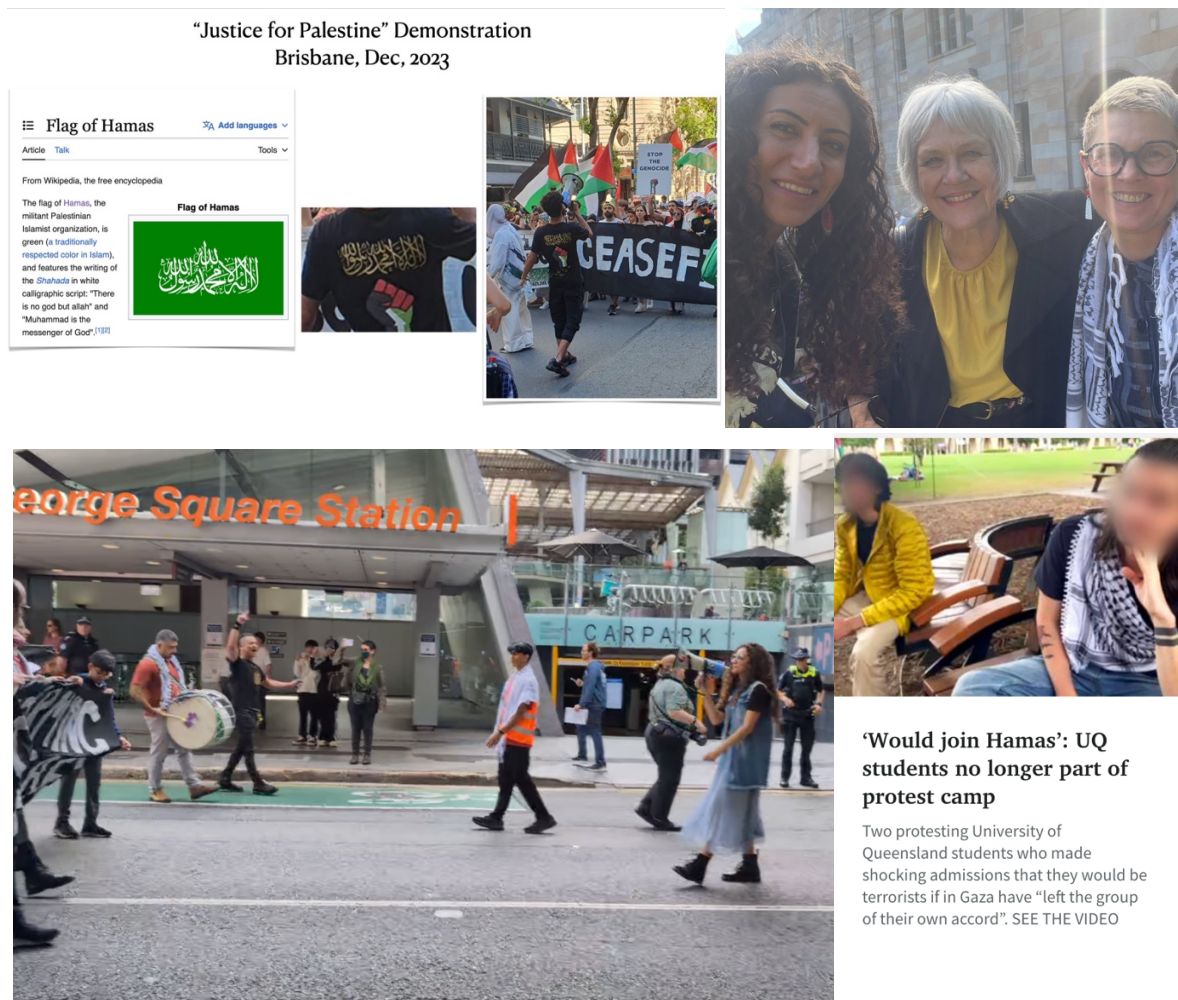


Figure 4: **Top Left:** A key figure in a Dec 2023 Justice for Palestine Magan-djin rally wears a **Hamas** shirt cheering on the crowd. **Top Right:** April 29, 2024 (first day of UQ encampment), **Remah Naji (Ismail)**, organizer of Justice for Palestine Magan-djin group, meets at UQ with MP **Elizabeth Watson-Brown** and Senator **Penny Allman-Payne**. **Bottom left:** **Remah Naji (Ismail)** in action in a protest in the Brisbane CBD, Aug 11, 2024. **Bottom right:** Activists at the UQ students4palestine encampment state that they would join **Hamas** in certain circumstances.

I'll also mention that many of the protest activities at UQ use booked rooms through the UQ booking system. While I have complained to senior management about such use of our university rooms, UQ has not taken action.

Camping on Campus

A heart of the issue which highlights UQ's mismanagement is the camping that was allowed to occur on Campus. My personal story is that I found out on Friday April 26, 2024 that activists are planning an anti-Israel encampment on campus, similar in nature to the Columbia university (NY, USA) encampment. In a dire attempt to try and convince UQ's VC to prohibit such camping, on that Friday I let the VC and her team know that I also plan to (peacefully) camp on campus if allowed, yet I pleaded that she would disallow camping. Over the weekend, a group of likeminded people organized from my side. This group included Israeli ex-pats, Jewish people, and Iranian freedom activists among others. Then on Monday, April 29, when it became evident that UQ was

not going to take control of the situation as first tents were pitched at around 10am, my group had no choice but to also pitch our tents and stand up for our safety and dignity. The other encampment had demands that vilify anything and everything related to Israel (more on vilification of Zionists below). With this, our “Camp Shalom” was born, yet the goal was simply to help UQ to diffuse the situation and hope that UQ management take control and ask all campers to leave, ASAP.

It took the university three weeks to come up with such a request! Then when the university asked campers to leave, we disbanded Camp Shalom within 24 hours. In contrast, the anti-Israel encampment remained, up until a point where UQ **negotiated** with some of the campers and gave in to some of their demands (more on this below).

In retrospect, we are all lucky (both Camp Shalom and the other campers) that no one was physically hurt during that difficult month of May 2024. There were never any OH&S regulations in place for the camping. It was never made clear what is “allowed” and what was “not allowed”. It was a university campus that turned into a disorganized and dangerous campsite. Further, as discussed above, there were multiple hate events directed towards members of Camp Shalom, and as far as I know, not a single event in the other direction.

With the exception of referencing antisemitism in communications on May 17 and June 1, and lightly referencing of a few adverse events in other communications, the university has maintained a position claiming that "most of the protest and camping activity has been very civil" (variations of this narrative have been continuously provided by the VC). These claims of the university via the VC have appeared throughout May 2024 both in personal communication with Camp Shalom members, in media communications, in all staff/student communications, and in the all-staff forum of May 27. However, these claims, attempting to present "activism on campus" in a positive light, stand in stark contrast to many severe events that have happened on campus since April 29, 2024.

On June 1 the university released [a Statement of Commitment between The University of Queensland, UQ Muslim Students for Palestine and The University of Queensland Union \(UQU\)](#) after which members of the anti-Israel camp dismantled part of the camp and stopped sleeping on campus. Note however that the agreement does not require parties to not camp again.

The negotiations were not with both Camp Shalom and the Anti-Israel parties, but only involved the anti-Israel parties. Note that the vice-chancellor met Jewish student leaders on Friday, May 31, but they were not presented the details of the forthcoming agreement.

The price of giving into demands

UQ has given into some of the demands of the anti-Israel protestors while failing to fully protect the small Jewish minority on campus. In particular, a [Sensitive Research Statement](#) was released on July 31, 2024.

While the bulk part of that statement does not put students or staff in direct risk, at the end of the statement there is a component which hints of a boycott (see Figure 5).

Investment disclosures	
UQ has no direct holdings, including any form of equity holding, shares, investment in or loan to:	
• a business enterprise referenced in the UN Human Rights Council Resolution 31/36 database • a weapons manufacturing corporation (including munitions and vehicles manufactured for the deployment of munitions).	
UQ's investment portfolio includes actively and passively externally managed funds*.	
UQ's active fund managers do not hold investments in weapon manufacturing corporations.	
Two of our active fund managers hold investments in two businesses listed in the UN database as shown in the table 1 below. This represents 0.67% of the University's overall investment portfolio as at 30 June 2024.	
Both fund managers are signatories to the United Nations Principles for Responsible Investment . We have directed them to consider the UN database when making future investment decisions.	
Table 1: Investments held by independent actively managed funds in businesses listed on the UN Human Rights Council Resolution 31/36 database	
Indirect investments as at 30 June 2024	AUD\$
Bookings Holdings Inc	8,459,935
AirBnB Inc	3,664,596

Figure 5: Part of the statement released by UQ on July 31, 2024, as a consequence of negotiations with anti-Israel campers. The text enclosed in red hints at a boycotts, a key demand of anti-Israel protestors.

While at face value, a person not associated with Israel may not see such boycotts as a severe action, I want to stress the severity of the path that UQ has chosen. In particular, by “giving in” to the anti-Israel protestors and putting in such a statement, the university has opened the door for further hate and vilification acts.

Indeed, on Aug 21, 2024, anti-Israel protestors managed to fend off an Australian business from attending a student tradeshow at UQ. This was via action directed at a specific professional student union. With that, the protestors named a specific Israeli ex-pat (a hard working Australian just like me), and insisted that he not be invited. I am not naming the person or his business here to protect his privacy. Yet let me state that an Australian company owned by an Israeli ex-pat was “named and shamed” and kicked out of campus. Why?

If UQ would have taken an approach of allowing (orderly) free speech, banning encampments (from the go), and never negotiating with protestors, that specific Australian business owner would not have been hurt.

I'll also state that Prof. Terrie has played the game of “consulting” with Jewish students prior to taking action, often for the purpose of indicating that consultation has taken place. Such was the case prior to the Statement of Commitment at the end of May, and prior to the Sensitive Research Statement at the end of July. Yet in both cases, Jewish students were only presented partial information. For example, the critical text in the red box in Figure 5 was not presented to Jewish students prior to publishing.

I'll also close this section by stating that in her message to the university body on July 31, 2024, Prof. Terrie wrote “in seeking a peaceful resolution to the Semester 1 encampments...”. Yet this stands in contrast to all of her messaging during the painful month of May 2024, where she claimed on multiple occasions that encampments and demonstrations are peaceful. If there is justice in our country, Prof. Debbie Terrie will be asked to testify in Canberra and the outcome of that investigation will serve the basis for legislation outlining clearer government guidelines for the education sector.

Vilification of Zionist People is Antisemitism

It appears that at the heart of some of the debate there is the issue of what constitutes racist hate speech and what does not. I argue that vilification of Zionists is racism of the first kind. Not all Jewish people are Zionists and not all Zionists are Jewish people, yet within my circles everyone is very hurt (including me) from statements that vilify Zionists. One can oppose Zionism just like one can oppose nationalism of any kind, but treating a Zionist person with disrespect due to them being a Zionist is an act of hate.

Two concrete examples of hate against Zionists are in Figure 6. On the left is a snippet from [this video](#) in a protest that took place under the VC's office on May 29, 2024. On the right is a post on Jonathan Sri's Facebook page where he vilifies me directly (even though he does not name me)! Note that I did **not** claim the claims that he attributes to me in his post, but that is irrelevant to the fact that he vilifies me.

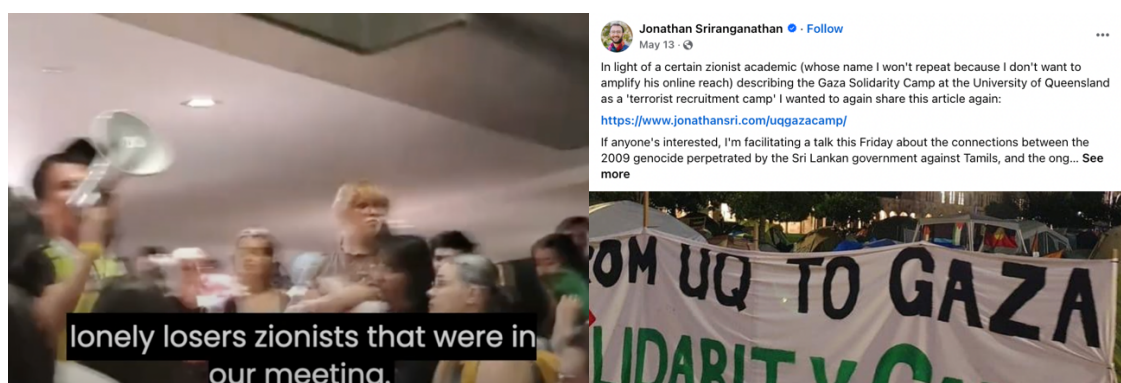


Figure 6: **Left:** May 29, 2024, A socialist alternative protestor vilifies Zionists after a student union meeting that also involved a few Jewish students. His statement is directly aimed at a Jewish student that presented the Jewish point of view. **Right:** May 13, 2024, Political activist **Jonathan Sri** refers to me directly (without naming me) in his Facebook post and vilifies me directly (note that he has 30K Facebook followers).

While there are people of Jewish origin that oppose Zionism, at its core, Zionism is simply the desire of the Jewish people to have a homeland in Israel. Indeed, many Jewish holidays are directly related to this concept. Anti-Zionism implies to be against the concept of the Jewish state of Israel. This in my view is not hate speech on its own, yet if the use of blanket statements that claim that all Zionists are evil is hate speech. Such hate speech cannot be tolerated in our campuses.

Final thoughts

Thank you for reading through this long statement. I have tried to cover key events and issues from the last couple of months. This is obviously based on my perception and potential bias. I hope that my statement and other statements of others serve as motivation for members of both major political parties to initiate a rigorous judicial inquiry. I think that high end managers like my university's VC should be invited to testify in Canberra. This is not for finding whom to blame, but rather for improving our country as we move forward.

The war in the middle east is far from done and both Israeli ex-pats like me, and Palestinian supporters living in Australia feel great pain. However, we are all lucky that Australia is not a war zone, and with that, our university campuses should not be war zones either.

Associate Professor (Dr.) Yoni Nazarathy.

<https://yoninazarathy.com/>